

PORTER | SCOTT
A PROFESSIONAL CORPORATION

Chad S. Tapp, SBN 214898

ctapp@porterscott.com

Tyler J. O'Connell, SBN 346673

toconnell@porterscott.com

2180 Harvard Street, Suite 500

Sacramento, California 95815

TEL: 916.929.1481

FAX: 916.927.3706

Attorneys for Defendant

CSAA INSURANCE EXCHANGE

FILED
San Francisco County Superior Court

AUG 6 2026

CLERK OF THE COURT

BY: 
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

CASE NO.: CGC-25-631801

Plaintiff,

v.

CSAA INSURANCE EXCHANGE,

Defendant.


**[PROPOSED] ORDER GRANTING
DEFENDANT CSAA INSURANCE
EXCHANGE, MICHAEL CHAMBERS,
AND CARBONE, SMITH & KOYAMA's
MOTION TO STRIKE AMENDED
COMPLAINT.**

Date: May 12, 2026

Time: 9:00AM

Dept: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

Defendant CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS, AND
CARBONE SMITH & KOYAMA ("Defendant") Motion to Strike Plaintiff's Amended Complaint
came for hearing on May 12, 2026, in the above referenced court. Tyler J. O'Connell appeared as
counsel for Defendant and FRANCISCUS DYLAN ROSARIO appeared as pro-per as Plaintiff.
Having considered Defendant's Motion to Strike Amended Complaint, and good cause appearing
therefore,


**[PROPOSED] ORDER GRANTING DEFENDANT CSAA INSURANCE EXCHANGE, MICHAEL CHAMBERS,
AND CARBONE, SMITH & KOYAMA's MOTION TO STRIKE AMENDED COMPLAINT**

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1 Hearing held. ARGUED. Court having reviewed the pleadings and having heard oral argument rules
2 as follows:

3 **IT IS HEREBY ORDERED:**

4 Defendants' anti-SLAPP motion to strike is GRANTED. Defendants are entitled to fees and
5 may make a separate motion or seek fees with their cost bill, but a request for a particular amount
6 of fees for the first time on reply does not give sufficient notice.

7 The court broadly construes the anti-SLAPP statute. (Code Civ. Proc., § 425.16, subd. (a).)
8 Courts deciding anti-SLAPP motions use a two-step procedure. If the defendant shows that the
9 plaintiff's claims arise from protected activity (prong one), then the burden "shifts to the plaintiff to
10 demonstrate the merit of the claim by establishing a probability of success" (prong two). (*Baral v.*
11 *Schnitt* (2016) 1 Cal.5th 376, 384.) Under prong two, the plaintiff must make a "prima facie factual
12 showing sufficient to sustain a favorable judgment." (*Id.*, at p. 385.) In performing its analysis, the
13 court looks to the pleadings, declarations or affidavits, and judicially noticeable material concerning
14 the facts upon which liability is based. (Code Civ. Proc., § 425.16, subd. (b)(2).)

15 "[A] claim may be struck only if the speech or petitioning activity *itself* is the wrong
16 complained of, and not just evidence of liability or a step leading to some different act for which
17 liability is asserted." (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th
18 1057, 1060 [emphasis in original].) Defendants meet prong one of the anti-SLAPP statute. The First
19 Amended Complaint ("FAC") arises from protected activity under Code of Civil Procedure, §
20 425.16, subd. (e)(2) ["any written or oral statement or writing made in connection with an issue
21 under consideration or review by a...judicial body"]. "Statements made in litigation, or in
22 connection with litigation, are protected by" the anti-SLAPP statute. (*Bergstein v. Stroock & Stroock*
23 *& Lavan LLP* (2015) 236 Cal.App.4th 793, 803; *Navellier v. Sletten* (2002) 29 Cal.4th 82, 90 ["The
24 constitutional right of petition encompasses the basic act of filing litigation."] [citation simplified];
25 *Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092 [equitable action to vacate a judgment
26 triggered prong one of the anti-SLAPP statute].)

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1 Here, plaintiff seeks to vacate a prior court judgment and recover “ancillary monetary relief”
2 based on allegedly fraudulent litigation conduct. (FAC, 27:13-26.) The litigation conduct itself is
3 the wrong that plaintiff complains of. The FAC specifically references protected litigation activity.
4 (See, e.g., FAC. 10:18-19 [“CSAA Insurance Exchange, made multiple false and misleading
5 representations to the Court...”]; FAC, 3:6-9[“The defense obstructed Plaintiff’s ability to present
6 material evidence”]; FAC, 6:21-22 [Defense counsels’ “conduct constituted fraud on the court and
7 was a proximate cause of the process corruption that procured the judgment.”].)

8 Plaintiff’s citation to Code of Civil Procedure, § 425.17, subdivision (c) [commercial
9 exemption] is inapposite. Plaintiff sues over litigation conduct, not commercial activity.

10 Since defendants meet prong one, the plaintiff must establish via admissible evidence a
11 probability of prevailing on the claims (prong two). (See *Computer Xpress, Inc. v. Jackson* (2001)
12 93 Cal.App.4th 993, 1010.) At prong two, “a plaintiff must make a prima facie showing of facts
13 which would, if proved at trial, support a judgment in plaintiff’s favor. This standard is similar to
14 the standard used in determining motions for nonsuit, directed verdict, or summary judgment, in
15 that the court cannot weigh the evidence. However, the plaintiff cannot simply rely on the allegations
16 in the complaint, but must provide the court with sufficient evidence to permit the court to determine
17 whether there is a probability that the plaintiff will prevail on the claim.” (*Id.* [citation simplified].)

18 Plaintiff does not meet his prong two. While plaintiff attempts to characterize his claim as an
19 equitable action to vacate a judgment based on extrinsic fraud, it is really a non-cognizable claim based
20 on intrinsic fraud.

21 “The extrinsic/intrinsic fraud rule is a doctrine developed in courts of equity governing the basis
22 for successful collateral attack on a final judgment by way of an independent proceeding. The rule is
23 that fraud internal to the adversary proceeding, such as perjury committed during trial or error or mistake
24 during the trial, is intrinsic and is not a basis for relief; but fraud that prevented the trial of a claim or
25 prevented the defrauded party from getting into court at all, is extrinsic to the proceeding and is a basis
26 for relief. Obviously, where there has been little or no judicial time invested in trial of a cause or an
27 issue, the factor of judicial economy which otherwise weighs in favor of finality is less strong, and the
28 equitable considerations of fair hearing and of penalizing fraud weigh more compellingly.” (*Los Angeles*

1 *Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7.) In this case, plaintiff is seeking to vacate
2 a judgment after a full-blown trial and is even appealing the judgment. "Extrinsic fraud usually arises
3 when a party is denied a fair adversary hearing because he has been deliberately kept in ignorance of the
4 action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense."
5 (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471 [citation simplified].) Plaintiff complains that movants
6 obstructed his ability to present evidence, but the issues he raises in the FAC were fully litigated in the
7 trial court. (See RFJN Ex. E, Def's MIL # 6; RFJN Ex. F, Def's MIL # 8; RFJN Ex. G, Def's MIL # 17;
8 and RFJN Ex. H, Order re Trial Scheduling and MILs). Plaintiff presented his case, lost, and may pursue
9 his appeal rights.

10 Civil Code § 47(b) [litigation privilege] does not bar a claim to vacate a claim to vacate a
11 judgment based on extrinsic fraud. (*Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147
12 [absolute litigation privilege bars derivative tort actions (including fraud) but does not eliminate the
13 equitable remedy of vacating a fraudulently obtained judgment].) If plaintiff merely sought to vacate the
14 judgment, there would be no need to name movants (insurer and defense counsel). The litigation
15 privilege, however, does bar plaintiff's request for "ancillary monetary relief," which is really a claim
16 for fraud damages against defendants. "The usual formulation is that the privilege applies to any
17 communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants
18 authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or
19 logical relation to the action." (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.) Defendants establish
20 these elements. "Any doubt about whether the privilege applies is resolved in favor of applying it."
21 (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913.) The privilege also "extends to
22 noncommunicative acts that are necessarily related to the communicative conduct..." (*Rusheen v. Cohen*
23 (2006) 37 Cal.4th 1048, 1065.)

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1 The court grants defendants' motion to strike the FAC in its entirety. Defendants may seek fees
2 by separate motion. (Code Civ. Proc., § 425.16, subd. (c)(1).) The court does not consider plaintiff's
3 various supplemental opposition briefs, which were filed without authorization, but does consider
4 plaintiff's requests for judicial notice.

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6 **IT IS SO ORDERED.**

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9 Dated: 8/6/2016


JUDGE OF THE SUPERIOR COURT

CHRISTINE VAN AKEN